

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-25
20230930-DK-BUTTERFLY-1, INC. v. CMA CGM S.A.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹ (“Complainant” or “BBBY”) and Respondent CMA CGM S.A. (“Respondent” or “CMA”) (collectively, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have exchanged initial disclosures pursuant to 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 and 502.145, respectively.

Consistent with Paragraph 31 of the Presiding Officer’s September 5, 2025 Initial Order, the Parties will meet and confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. The Parties have exchanged a draft of a Protocol Regarding Electronically Stored Information which includes discussions of relevant custodians and search terms to aid in the collection and review process.

Pursuant to 46 C.F.R. § 502.64(a), the Parties will hold a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) via a

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20230930-DK-Butterfly-1, Inc.

videoconference as soon as the government shut down that began on October 1, 2025 has lifted. The Parties sent a joint email to CADRS's Director on October 9, 2025 to initiate such a conference.

While mindful of the 150-day time period prescribed by 46 C.F.R. § 502.141(g), the parties anticipate that discovery in this proceeding will require more than 150 days to complete.

The Parties propose this schedule having already engaged in discussions regarding the collection of electronically stored information from likely relevant custodians and the proposal of possible search terms to identify potentially relevant documents.

The Parties' databases of potentially responsive documents contain multiple terabytes of data, much of which exists in compressed electronic files that, once expanded, will significantly increase the total data volume. This information includes significant quantities of emails and electronic files collected from identified custodians, as well as substantial additional materials from shared document repositories and other sources. After the initial electronic searches and narrowing are completed, the remaining documents must be manually reviewed for responsiveness, confidentiality, and privilege before production, which will entail considerable time and resources. The total volume of data subject to review may further increase depending on the final list of agreed-upon custodians and other contingencies.

The Parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, to which the deadlines for issuance of initial and final decisions are imperative. However, where (1) discovery stems from a universe of millions of documents from both Parties, (2) significant third-party discovery is necessary, and (3) the Parties anticipate needing multiple depositions of current/former party employees and third-party persons, discovery cannot be reasonably completed within the Commission's prescribed 150-

day period. The Parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission. The same rationale should apply at this initial stage, when a discovery schedule is being established.

Policy considerations favor allowing additional time to ensure a full development of the evidentiary record before an agency. *See Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (discussing the policy and responsibility of the Commission and, by delegation of authority, the presiding judge, to inquire into and consider all relevant facts; emphasizing that the need to ensure that justice is served and all relevant facts are considered by the Commission is of greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions).

The Parties believe that there is good cause to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and, accordingly, propose the following schedule:

EVENT	PROPOSED DEADLINE
Serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories.	November 5, 2025
Serve objections and initial responses to initial RFPs.	December 5, 2025
Serve objections and initial responses to initial interrogatories.	December 5, 2025
Submit any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly).	December 19, 2025
Confirm substantial completion of production of documents and ESI in response to initial RFPs, including third-party discovery.	March 12, 2026

File Joint Status Report.	April 1, 2026
Complete depositions of fact witnesses.	April 21, 2026
Serve final interrogatories, requests for admission, and RFPs.	April 21, 2026
Disclose initial expert reports, if any.	May 21, 2026
Disclose rebuttal expert reports, if any.	June 22, 2026
Complete expert depositions.	July 10, 2026
Close of discovery.	July 10, 2026
Complainant's initial brief, proposed findings of fact, and appendix.	August 11, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	September 25, 2026
Complainant's reply and responses to proposed findings of fact.	October 16, 2026

Given the considerable amount of discovery that is required by this case, the Parties propose to file a joint status report with the Presiding Officer on April 1, 2026 to report on the status of discovery.

Dated: October 14, 2025

Respectfully submitted,

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